

wrongfully exercised over personal property of another inconsistent with, or in denial of, his rights thereto. (*Zaslow v. Kroenert* (1946) 29 Cal.2d 541..) The SAC sufficiently states a conversion cause of action against G&Y regarding the vehicle. Accordingly, the court overrules the demurrer to the 2nd cause of action.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405636	DREVDAHL VS THE FOXHALL EVENT COMPANY LLC	MOTION TO COMPEL

Tentative Ruling: Deny

Under CCP § 2016.090(a)(1), within 60 days of a demand being made by any party to a lawsuit, each party that has appeared in the lawsuit must provide to the other parties an initial disclosure. “A party’s obligation under this section may be enforced by a court on its own motion or the motion of a party to compel disclosure.” (CCP § 2016.090(a)(4).)

Based on the opposition and reply, Defendant provided a disclosure after this motion was filed. Due to this, the motion is moot. While Plaintiff dislikes how Defendant responds and argues in reply that the statements made by Defendant are false, Plaintiff does not argue that these responses are not code compliant. The Court cannot make Defendant change its responses simply because Plaintiff does not agree with them. As such, this argument by Plaintiff has no impact on this motion.

Both parties seek sanctions. CCP § 2016.090 does not specifically provide for sanctions. Plaintiff does not identify a statutory basis for sanctions other than CCP § 2016.090. Even if he had, sanctions do not appear appropriate because Defendant’s counsel did not receive the demand for the initial disclosure. As such, imposing sanctions would be unjust. In opposition, Defendant seeks sanctions under CCP § 2031.310(h). However, this statute pertains to motions to compel further responses to requests for production of documents, which are not at issue in this motion. Due to this, this request appears inappropriate. Based on this, both requests for sanctions should be denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501757	ADAME VS WALMART INC.	MOTION FOR ORDER UNDER CODE OF CIVIL PROCEDURE § 129(A)(2) AUTHORIZING THE RIVERSIDE COUNTY CORONER TO RELEASE PHOTOGRAPHS OF DECEDENT

Tentative Ruling: Off Calendar. Withdrawn.